

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

June 13, 2022

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich (via Zoom), Bryan Cook, Ken Esquibel (via Zoom), Richard Johnson, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Absent: Pete Laybourn. Also present: Kristina F. Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Cook and pursuant to support received by Mr. Johnson and Mr. Roybal, items #23 and 27 were removed from the Consent Agenda. Mr. Segrave moved to approve remaining items, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on May 23, 2022. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing for a bar & grill liquor license application filed with the City Clerk’s Office for a bar and grill liquor license application filed with the City Clerk’s Office for SAF Compliance LLC d/b/a Paris West Restaurant & Bar, 1719 Central Ave., Cheyenne, WY. Public comment was made by Corey Loghry. Comment was made by the following members of the governing body: Mr. Johnson. There being no further comments or input and purpose of the hearing having been met, Mayor Collins closed the public hearing and referred the application to Finance Committee.

Mayor Collins opened a public hearing to receive comments and input for a proposed trade of real property owned by the City of Cheyenne, described as a portion of Missile Drive, Block 1, consisting of 2.35 acres and having an appraised value of \$547,658.00, to Retail Properties LLC, for real property owned by Retail Properties LLC, described as a portion of Grier Leech Addition, 4th Filing, Lot 4, Block 9, consisting of 2.89 acres and having an appraised value of \$548,083.00. Purpose of the hearing having been met, Mayor Collins closed the public hearing.

Mayor Collins opened a public hearing to receive comments and input for a proposed trade of real property owned by the City of Cheyenne, described as Storey Blvd. Extension: Lot 1, Block 6, consisting of 2.24 acres and having an appraised value of \$86,000.00, and 1720 Cleveland Ave., WYNN Addition: Lot 1, Block 1, consisting of 2.18 acres and having an appraised value of \$1,040,000.00, for real property owned by US 30 BP LLC, described as US 30 Business Plaza, 2nd

Filing: Lot 1, Block 1, consisting of 2.86 acres and having an appraised value of \$1,350,000.00. Purpose of the hearing having been met, Mayor Collins closed the public hearing.

Mayor Collins opened a public hearing to receive comments and input for proposed budgets for the City of Cheyenne and Board of Public Utilities for Fiscal Year 2023. There being no comments or input and purpose of the hearing having been met, Mayor Collins closed the public hearing.

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, land located northwest of the intersection of Christensen Road and Pershing Boulevard. Reporting for Public Services Committee, Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#4436)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County A1 Agricultural and Rural Residential to MR Medium-Density Residential for land located northwest of the intersection of Christensen Road and Pershing Boulevard. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#4437)

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, land located north of Missile Drive, east of I-25. Mr. Cook moved to approve on third and reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present. (#4438)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County LI Light Industrial to LI Light Industrial for land located north of Missile Drive, east of I-25. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#4439)

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, land located north of High Plains Road, west of I-25. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#4440)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from Swan Ranch PUD Planned Unit Development to City Swan Ranch PUD Planned Unit Development (Ordinance No. 3989) for land located north of High Plains Road, west of I-25. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#4441)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MUB Mixed-Use Business Emphasis to CB Community Business for land located northeast of the intersection of Dell Range Boulevard and Ridge Road. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#4442)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from CB Community Business to MR Medium-Density Residential for land located southeast of the intersection of Omaha Road and Pine Drive. Mr. Cook moved to approve on third and final reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present. (#4443)

ORDINANCE – 3rd READING – Vacating a portion of the Goodnight Trail Roundabout, Sweetgrass, 1st Filing, City of Cheyenne, Laramie County, Wyoming (located along Goodnight Trail, between College Drive and Murray Road). Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#4444)

ORDINANCE – 3rd READING – Vacating a portion of the Sweetgrass Drive Roundabout, Sweetgrass, 1st Filing, City of Cheyenne, Laramie County, Wyoming (located along Sweetgrass Drive, Between College Drive and Murray Road). Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#4445)

ORDINANCE – 3rd READING – Creating Chapter 13.28, Urban Stormwater Quality Management and Discharge Control, Public Services, of the Code of the City of Cheyenne, Wyoming. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#4446)

ORDINANCE – 3rd READING – Approving and establishing revised water and sewer rates, tap and system development fees, administrative fees, service charges and penalties, and septic and commercial waste dump rates, as recommended by the Board of Public Utilities. Reporting for Finance Committee, Mr. White moved to approve on third and final reading, seconded by Mr. Segrave. Comments were made by the following members of the governing body: Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present. (#4447)

ORDINANCE – 3rd READING – Appropriating moneys for the City of Cheyenne, Wyoming for various purposes in conducting municipal government of said City and fixing the amount of general and special taxes as part of the revenue required to meet the said appropriation, all for the Fiscal Year beginning July 1, 2022 and ending June 30, 2023. Reporting for Committee of the Whole, Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Mr. Roybal moved to amend by substitute dated June 8, 2022, seconded by Mr. Segrave. Comments were made by the following members of the governing body: Mayor Collins and Mr. Johnson. Motion to amend by substitute carried. Voting “yes” – all members of the governing

body present. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present. (#4448)

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MUB, MUR, LI, and CB to MUB with the UU Overlay for land located in the West Edge District. Mr. Cook moved to approve on second reading, seconded by Mr. White. Public comment was made by: Chad Willett, Get Bent LLC, Darin Westby, Westby Edge LLC and Randy LeBeaumont, Randy’s Towing. Comments were made by the following members of the governing body: Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 1st READING – Amending Unified Development Code Section 1.4.4.f, Industrial Services Uses, to create a definition for Data Center and to amend definitions for clarification and amending Table 5-1, Zoning District Uses, of Unified Development Code Section 5.1.4, Districts and Uses, to classify the Permissibility of Data Center – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE – 1st READING – Amending Section 9.08.010(B)(3), Disturbance of the Peace and Disturbance of Property, Chapter 9.08, Offenses Against Public Peace and Decency, of Title 9, Public Peace and Welfare, of the Code of the City of Cheyenne, Wyoming -- referred to Public Services Committee. (Sponsor – Mr. Cook)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a final plat for Saddle Ridge, 18th Filing a plat of a portion of the east half of Section 25, T.14N., R.66W., of the 6th P.M., City of Cheyenne, Laramie County, Wyoming (located northwest of the intersection of Christensen Road and Pershing Boulevard). Mr. Cook moved to adopt, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#6240)

[CA] RESOLUTION – Providing for partial vacation of the Storey Boulevard Extension Final Plat. Motion (per Consent Agenda) carried. (#6241)

RESOLUTION – Approving the budget of the Cheyenne Downtown Development Authority for the Fiscal Year beginning July 1, 2022 and ending June 30, 2023. Mr. White moved to adopt, seconded by Mr. Roybal. Public comment was made by Glen Garrett. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. Cook. Dr. Aldrich moved to postpone to June 27, 2022, seconded by Mr. Segrave. Motion to postpone carried. Voting “yes” – all members of the governing body present with the exception of Mr. Roybal voting “no”.

[CA] RESOLUTION – Approving the budget of the Cheyenne Regional Airport Board for the Fiscal Year beginning July 1, 2022 and ending June 30, 2023. Motion (per Consent Agenda) carried. (#6242)

RESOLUTION – Authorizing the creation and appointment of a new Reed Avenue Corridor Steering Committee. Mr. Cook moved to adopt, seconded by Mr. Segrave. Public comment was made by Tony Lucero, A & C Feed Co. and Darin Westby, Westby Edge LLC. Mr.

Cook moved to postpone to June 27, 2022, seconded by Mr. White. Motion to postpone carried. Voting “yes” – all members of the governing body present.

RESOLUTION – Approving the Hynds and the Hole Urban Renewal Plan and the Hynds and the Hole Urban Renewal Project pursuant to Wyoming Statute §15-9-110. Mr. White moved to adopt, seconded by Mr. Segrave. Public comment was made by Jim Weaver, #1 Properties. Comments were made by the following members of the governing body: Mr. Segrave. Mr. Segrave amend by substitute dated June 10, 2022 (without condemnation), seconded by Mr. Roybal. Motion to approve by substitute carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson voting “no”. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson voting “no”. (#6243)

RESOLUTION – Approving the 15th Street Corridor Urban Renewal Plan and the 15th Street Corridor Urban Renewal Project pursuant to Wyoming Statute §15-9-110. Mr. White advised the item failed at Finance Committee. Mr. White moved to adopt, seconded by Mr. Segrave. Public comment was made by: Greg Vaughn, MHP, LLP, Casey Palma, Palma Land Planning and Chad Willett, Get Bent LLC. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Johnson, Mr. Segrave and Mr. White. Mr. Segrave moved to amend by substitute dated June 10, 2022, seconded by Mr. Roybal. Motion to amend by substitute carried. Voting “yes” – all members of the governing body present. Main motion as amended by substitute carried. Voting “yes” - all members of the governing body present. (#6244)

[CA] RESOLUTION – Authorizing the City of Cheyenne Board of Public Utilities to discharge uncollectible debts in the amount of \$28,499.04 pursuant to Wyo. Stat. § 16-4-502 – referred to Finance Committee. (Sponsor – Mr. Laybourn)

[CA] RESOLUTION – Supporting the continuation of the Optional One Percent Sales Tax for calendar years 2023 through 2026 and pledging that all revenues derived from this tax will be used for projects described in this resolution – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Approving a Special Use Permit for Oil and Gas Support Services for Lot 1, Block 1, Plains Industrial Park, 2nd Filing, Laramie County, Wyoming – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Naming the new Community Park, located on the southwest corner of the intersection of E. Pershing Boulevard and Whitney Road, commonly referred as East Cheyenne Community Park to be known as Kiwanis Park – referred to Public Services Committee. (Sponsors – Dr. Aldrich and Mr. Segrave)

[CA] RESOLUTION – Providing for partial vacation of the Frontier North Final Plat – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Authorizing the City of Cheyenne Community Recreation and Events Department to apply for a Cheyenne Community Recreation District Recreation Mill Grant to construct a multi-use storage facility at the Cheyenne Junior League Athletic Complex – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Authorizing the City of Cheyenne Planning and Development Department to accept a U.S. Environmental Protection Agency Community-Wide Brownfield Assessment Grant to continue development efforts in the West Edge District – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Authorizing the submission of an application by the City of Cheyenne for federal funding through the Transportation Alternatives Program administered by the Wyoming Department of Transportation for the purpose of design and right-of-way acquisition for a multi-use path for pedestrians and bicycles from the Sun Valley Open Space into East Cheyenne Community Park – referred to Finance Committee. (Sponsor – Mr. Laybourn)

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County School District #1 to provide transportation services for the summer Rec Camp Program (Recreation Program Funds). Motion (per Consent Agenda) carried. (#7527)

[CA] Professional Services Agreement between the City of Cheyenne and Steiner Thuesen PLLC for the Cemetery Irrigation System Design Project (Specific Purpose Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$144,692.00). (#7528)

[CA] Professional Services Agreement between the City of Cheyenne and GLM Design Group for the Dry Creek Master Plan Update and Drainage Code Review Project (2019-2022 1% Sales Tax and Wyoming Office of Homeland Security/FEMA Grant). Motion (per Consent Agenda) carried (in an amount not to exceed \$524,234.00). (#7529)

[CA] Memorandum of Understanding between the City of Cheyenne and the Wyoming Independent Citizen Coalition for public art projects. Motion (per Consent Agenda) carried. (#7530)

[CA] Professional Services Agreement between the City of Cheyenne and Waste Management of Colorado, Inc., for the Recycling Services Project (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$200,000.00). (#7531)

[CA] Contract between the City of Cheyenne and Blue Cross Blue Shield for third party administrator services and for group health insurance benefits for City employees – referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Granular Insurance Company for Stop Loss Insurance for City employees – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Brian Quinn for City Prosecutor Legal Counsel Services (General Fund) – referred to Finance Committee.

[CA] City Contract #150, Notice of Renewal of Lease Number 57-82HW-1-0171 from the United States Department of Agriculture, Agricultural Research Service, to lease the High Plains Grasslands Research Station (Revenue to City). Motion (per Consent Agenda) carried. (#150)

[CA] Contract Modification #2 to Contract #7319 between the City of Cheyenne and KLJ Engineering for mapping and surveying services for the Landfill and Compost Facility for a two-year (2) extension (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$99,232.00) (#7319)

[CA] Contract Modification #1 to Contract #7500 between the City of Cheyenne and V & M Properties, LLC for property located at 1800 Westland Road, Cheyenne, Wyoming, for the purpose of relocating the Cheyenne Transit System office and transfer station (Federal Grant WY-2021-005-00 and Transit Fund). Motion (per Consent Agenda) carried. (#7500)

[CA] Contract Modification #1 to Contract #7151 between the City of Cheyenne and the Wyoming Business Council to extend the construction services completion deadline and agreement expiration date for the FE Warren Enhanced Use Lease Project – referred to Finance Committee.

[CA] Consideration of Bid #E-28-22 for multiple contracts between the City of Cheyenne and Solid Rock, 119, Inc. d/b/a Top-Flight Maintenance, Inc., for Janitorial Services for multiple City of Cheyenne Facilities (General Fund & Youth Activities Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-29-22 for twenty-four (24) four (4) yard front end load containers and twenty-four (24), eight (8) yard front end load containers for the City of Cheyenne, Sanitation Division (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-14-22 for a contract between the City of Cheyenne and Reiman Corp. for the ADA Ramp Improvements for Evers Boulevard Project (2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #S-16-22 for a contract between the City of Cheyenne and JTL Group Inc. d/b/a Knife River for the Nationway Overlay Phase 1 Project (Specific Purpose Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #S-17-22 for a contract between the City of Cheyenne and Casper Electric, Inc. for the Storey Boulevard and Ridge Road Signalized Intersection Project (2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration to purchase between the City of Cheyenne and OpenGov Inc., for the purchase of a Software as a Service (SaaS) Solution for budgeting, financial management, procurement, citizen services, reporting, transparency, and asset management (American Rescue Plan Federal Recovery Funds) – referred to Finance Committee.

Bar and grill license application filed with the City Clerk's Office for Billy Jacks – Wyoming LLC d/b/a Billy Jack's Pizza Pub, 4020 Airport Parkway West Suite 1, Cheyenne, WY (Postponed from May 23, 2022). Mr. White moved to approve, seconded by Mr. Segrave. Mr. White moved to postpone until June 27, 2022. Motion died due to lack of a second. Motion carried. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins and Mr. Johnson. Motion carried. Voting "yes" – all members of the governing body present.

[CA] Bar and grill liquor license application filed with the City Clerk's Office for Westby Edge LLC d/b/a Westby Edge LLC, 714 W. 20th St., Cheyenne, WY. Motion (per Consent Agenda) carried.

[CA] Microbrewery liquor license application filed with the City Clerk's Office for Westby Edge LLC d/b/a Westby Edge LLC, 714 W. 20th St., Cheyenne, WY. Motion (per Consent Agenda) carried.

Public comment was made by Jim Ridgeway on the Voucher Report as presented.

Announcement was made that due to City offices being closed for the Juneteenth holiday on Monday, June 20, 2022, regularly scheduled City Council Committee meetings will instead be held in the Municipal Building, Room 104, 2101 O'Neil Avenue, Cheyenne, Wyoming, and via electronic conference meetings as follows: Finance Committee will meet Tuesday, June 21, 2022 at Noon and Public Services Committee will meet Wednesday, June 22, 2022 at Noon.

Public comment was made by Jason Pasqua, Mayor's Advisory Council on Innovation and Entrepreneurship.

The Following members of the governing body made comments under other business – Dr. Aldrich and Mr. Johnson.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:39 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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